Gujarat State Electricity Corporation ... vs Gujarat Electricity Regulatory ... on 8 November, 2010

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No. 189 of 2010

Dated: 8th November, 2010

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

Gujarat State Electricity Corporation Limited ..... Appellant (s)

Versus

Gujarat Electricity Regulatory Commission ... Respondent (s)

Counsel for the Appellant(s): Mr. M.G. Ramachandran, Mr. Anand K. Ganesan, Ms. Swapna Seshadri & Ms. Sneha Venkataramani

ORDER

The Order passed on 03.05.2010 is challenged in this Appeal before this Tribunal. It is seen that immediately after the Order was passed, the Appellant has chosen to file the Review on 25.06.2010 and admittedly, the same is pending. Some of the issues which have been raised in this Appeal have also been raised in the Review. Therefore, we are not inclined to entertain this Appeal.

With this observation, the Appeal is dismissed. However, the Appellant is at liberty to file an Appeal, if so advised, before this Tribunal after the disposal of the review.

(Rakesh Nath)
Technical Member

(Justice M. Karpaga Vinayagam)
Chairperson

ts/ksm